

IP-SAKTI SAHAYAK

WIPO GRATK TREATY — INTERNATIONAL AYURVEDIC PATENT/IP REFERENCE

WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge (GRATK), adopted at Geneva on 24 May 2024.

Purpose of this document: a standalone, implementation-ready summary of the Treaty for IP-SAKTI's international Ayurvedic patent-risk module. The Treaty is not an “Ayurveda-only” treaty; its relevance to Ayurveda comes from its rules on genetic resources (for example, medicinal plants) and traditional knowledge associated with them.

Official name	WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge
Short name	WIPO GRATK Treaty
WIPO Lex code	TRT/GRATK/001
Adopted	24 May 2024, Geneva
Adopting body	WIPO Member States at the Diplomatic Conference on Genetic Resources and Associated Traditional Knowledge
Treaty scope	Patent applications involving inventions based on genetic resources and/or traditional knowledge associated with genetic resources
Entry into force	Three months after 15 eligible Parties have deposited instruments of ratification or accession
Signature period	Open for signature for one year after adoption, up to 23 May 2025
Ayurvedic relevance	Medicinal plants and associated traditional medicinal knowledge can fall within the GR/TK concepts covered by the Treaty
Status wording for website	Adopted international treaty; do not present as universally applicable domestic law until it enters into force and is implemented by the relevant Party

1. TREATY OBJECTIVES

The Treaty aims to enhance the efficacy, transparency and quality of the patent system with regard to genetic resources and traditional knowledge associated with genetic resources, and to help prevent patents being granted erroneously for inventions that are not novel or inventive in light of such resources or associated knowledge.

2. KEY TERMS

Genetic resources (GR)	Genetic material of actual or potential value. The Treaty framework is relevant to biological resources such as medicinal plants, although genetic resources themselves are not patentable as such.
Traditional knowledge associated with GR (associated TK)	Traditional knowledge associated with genetic resources. For IP-SAKTI, this is the important bridge to traditional medicinal knowledge used in Ayurvedic practices.
Invention based on GR	The Treaty uses a “based on” trigger. The claimed invention must be based on genetic resources for the mandatory disclosure requirement to apply.
Invention based on associated TK	The claimed invention must be based on TK associated with genetic resources for the relevant disclosure requirement to apply.
Country of origin	For GR-based inventions, the Treaty requires disclosure of the country of origin of the genetic resources, subject to the Treaty wording and applicable situation.
Providing Indigenous Peoples/local community	For inventions based on associated TK, disclosure concerns the Indigenous Peoples or local community that provided the associated TK.

3. ARTICLE-BY-ARTICLE DATASET

The table below follows the Treaty structure in WIPO Lex. It is designed so each article can be stored as a separate rule in the IP-SAKTI database.

Article 1 — Objectives

Rule / content	Enhance efficacy, transparency and quality of the patent system regarding GRs and associated TK; help prevent erroneous patents where the subject matter lacks novelty or inventiveness in light of GRs/associated TK.
IP-SAKTI implementation	System purpose / legal-policy layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 2 — List of Terms

Rule / content	Defines key terms used by the Treaty, including concepts necessary to determine whether the disclosure requirement is triggered.
IP-SAKTI implementation	Store as controlled vocabulary for the decision engine.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 3 — Disclosure Requirement

Rule / content	For a claimed invention in a patent application that is based on genetic resources, the applicant must disclose the country of origin of the genetic resources or, where applicable, the source. Where the invention is based on associated TK, the applicant must disclose the Indigenous Peoples or local community that provided the associated TK, or the source where applicable. If required information is unknown, the Treaty provides a declaration route.
IP-SAKTI implementation	Core rule for Ayurvedic patent screening.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 4 — Non-Retroactivity

Rule / content	The Treaty does not impose its obligations on patent applications filed before the Treaty enters into force, subject to existing national disclosure laws.
IP-SAKTI implementation	Date/version logic in database.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 5 — Sanctions and Remedies

Rule / content	Failure to disclose required information is subject to appropriate, effective and proportionate measures. Applicants should have an opportunity to rectify a failure unless fraudulent conduct or intent is involved. Where fraudulent intent exists, post-grant sanctions or remedies may be provided. Fraud aside, a Party should not revoke, invalidate or render a patent unenforceable solely because the disclosure was not made.
IP-SAKTI implementation	Risk/examination and post-grant logic.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 6 — Information Systems

Rule / content	The Treaty suggests information systems, such as databases, for GRs and associated TK. These systems should be accessible to patent offices for search and examination, taking national circumstances into account.
IP-SAKTI implementation	Directly supports IP-SAKTI's database/search concept.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 7 — Relationship with Other International Agreements

Rule / content	The Treaty is to be implemented in a mutually supportive manner with other relevant international agreements.
IP-SAKTI implementation	Cross-treaty compatibility field.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 8 — Review

Rule / content	Provides an in-built review mechanism. Certain issues may be reviewed four years after entry into force, including possible extension of disclosure to other IP areas and derivatives and issues arising from new/emerging technologies.
IP-SAKTI implementation	Future-proofing / update trigger.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 9 — General Principles on Implementation

Rule / content	Parties must adopt measures needed to ensure application of the Treaty, while retaining freedom to determine the appropriate method of implementation within their national legal systems and practices.
IP-SAKTI implementation	Country implementation layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 10 — Assembly

Rule / content	Provides for the Assembly of the Parties and its functions once the Treaty enters into force.
IP-SAKTI implementation	Governance layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 11 — International Bureau

Rule / content	Provides for functions of the WIPO International Bureau under the Treaty.
IP-SAKTI implementation	Governance/administrative layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 12 — Eligibility to Become a Party

Rule / content	Sets out who may become a Party, including WIPO Member States and the European Union, subject to the Treaty provisions.
IP-SAKTI implementation	Jurisdiction eligibility layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 13 — Ratification and Accession

Rule / content	Provides the legal route for eligible Parties to become bound by the Treaty through ratification or accession.
IP-SAKTI implementation	Treaty-status tracking layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 14 — Entry into Force

Rule / content	The Treaty enters into force three months after 15 eligible Parties have deposited instruments of ratification or accession.
IP-SAKTI implementation	Critical status field.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 15 — Denunciation

Rule / content	Provides the procedure for a Party to withdraw from the Treaty.
IP-SAKTI implementation	Treaty-status tracking layer.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 16 — Languages

Rule / content	Addresses authentic language versions and language arrangements under the Treaty.
IP-SAKTI implementation	Reference metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 17 — Signature

Rule / content	Provides for signature by eligible Parties during the specified period after adoption.
IP-SAKTI implementation	Historical/treaty-status metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 18 — Depositary

Rule / content	Designates the depositary function for treaty instruments and notifications.
IP-SAKTI implementation	Governance metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 19 — Notifications

Rule / content	Provides for notifications concerning signatures, ratifications, accessions and other treaty matters.
IP-SAKTI implementation	Status-monitoring metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 20 — Registration

Rule / content	Concerns registration of the Treaty in accordance with applicable international rules.
IP-SAKTI implementation	Reference metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 21 — Revision / Amendment

Rule / content	Provides the mechanism for amendment/revision of the Treaty in accordance with its provisions.
IP-SAKTI implementation	Future legal-update field.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

Article 22 — Final Provisions / Authentic Texts

Rule / content	Covers final treaty matters, including the authenticity of the treaty language versions.
IP-SAKTI implementation	Reference metadata.
Ayurvedic interpretation	Apply only where the user's claimed invention actually falls within the Treaty trigger; do not infer that every Ayurvedic formulation is automatically subject to the Treaty.

4. ARTICLE 3 — DETAILED AYURVEDIC PATENT DECISION LOGIC

This is the most important part of the Treaty for IP-SAKTI. The decision engine should not simply ask “Is this Ayurvedic?” It should determine whether the claimed invention is based on genetic resources and/or associated traditional knowledge.

Step	Question	If YES	If NO
1	Does the claimed invention involve a genetic resource?	Continue to GR origin/source check.	Check associated-TK route.
2	Is the claimed invention based on the genetic resource?	Disclosure requirement may be triggered.	Do not trigger Article 3 GR disclosure solely because a GR appears somewhere in background/history.
3	Can the country of origin of the GR be identified?	Store and disclose country of origin.	Store source/unknown status according to Treaty rule.
4	Is associated traditional knowledge involved?	Identify provider/source as applicable.	No associated-TK disclosure route.
5	Is the associated TK provided by Indigenous Peoples or a local community?	Store provider information required by Article 3.	Use source/unknown pathway as applicable.
6	Is required information unknown?	Use the Treaty’s declaration/source mechanism rather than inventing information.	Proceed with identified information.
7	Was the patent application filed before Treaty entry into force?	Treaty obligations are non-retroactive, subject to existing national laws.	Apply Treaty status + national implementation.
8	Has the relevant country implemented the Treaty?	Apply its domestic implementation rules.	Treat as Treaty status/reference; check applicable national law.

5. SANCTIONS & REMEDIES — DATABASE-READY

Ordinary failure to disclose	Appropriate, effective and proportionate measures may apply under the Treaty.
Rectification	Applicants should have an opportunity to rectify a failure to disclose, unless fraudulent conduct or intent is involved.
Fraudulent conduct/intent	Where fraudulent intent is involved, post-grant sanctions or remedies may be provided.
Patent validity	Except for fraud as addressed by the Treaty, a Party should not revoke, invalidate or render a patent unenforceable solely because the required disclosure was not made.
Implementation warning	The Treaty leaves implementation to national legal systems. Therefore, IP-SAKTI should not hard-code one universal sanction for every country.

6. INFORMATION SYSTEMS — DIRECT CONNECTION TO IP-SAKTI

Article 6 is particularly useful for your project concept: the Treaty suggests information systems/databases for genetic resources and associated TK, and says such systems should be accessible to patent offices for search and examination. This supports the design principle of maintaining a structured, searchable Ayurvedic/TK knowledge and IP-risk database rather than relying only on free-text search.

Recommended database record

Field	Value / rule
treaty_id	WIPO-GRATK-2024
article	Article 3 / Article 4 / Article 5 / Article 6 etc.
jurisdiction	Country implementing or tracking Treaty
treaty_status	Adopted / Signed / Ratified / Acceded / In Force (track from official WIPO notifications)
invention_based_on_GR	boolean
invention_based_on_associated_TK	boolean
GR_country_of_origin	string / null
GR_source	string / null
TK_provider	Indigenous Peoples / local community / source / null
TK_source	string / null
unknown_information_declaration	boolean
filing_date	date
treaty_entry_into_force_date	date / null
national_implementation_law	string / null
national_sanction	text / null
wipo_source	official WIPO Treaty / WIPO Lex
last_verified	date

7. OFFICIAL WIPO SOURCES

Primary source: WIPO Lex, Treaty text, TRT/GRATK/001, adopted 24 May 2024. Supporting source: WIPO's official Treaty summary and GRATK Treaty Resource Center. For implementation, IP-SAKTI should re-check WIPO's treaty status/notifications before showing a country as bound.

Source note: This document summarizes the official Treaty text and WIPO's official summary for software/database use. It is not a substitute for legal advice or for the domestic implementing legislation of a particular country.